

STATE OF NEW YORK

7680--A

2025-2026 Regular Sessions

IN SENATE

April 29, 2025

Introduced by Sen. SERRANO -- read twice and ordered printed, and when printed to be committed to the Committee on Cultural Affairs, Tourism, Parks and Recreation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the parks, recreation and historic preservation law, in relation to mandating the development and approval of operational safety plans

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The parks, recreation and historic preservation law is
2 amended by adding a new section 3.16 to read as follows:

3 § 3.16 Operational safety plans. 1. The office shall develop and
4 approve operational safety plans prior to the deployment of any employee
5 in hazardous conditions. The plan shall include, but not be limited to,
6 a comprehensive risk assessment identifying potential hazards associated
7 with the deployment, mitigation measures to address identified risks,
8 detailed information on team composition including roles and responsi-
9 bilities, identification of an on-site authorized person responsible for
10 overseeing operations, a clear chain of command for decision-making
11 during the deployment, emergency contact information for all team
12 members, and evacuation procedures tailored to the specific deployment
13 scenario. The commissioner or the commissioner's designee shall review
14 and approve all operational safety plans to ensure compliance with
15 established safety standards, verify that the employees being deployed
16 are adequately trained for their roles, and confirm that the operation
17 is essential under hazardous conditions.

18 2. For the purposes of this section:

19 (a) "hazardous conditions" shall mean any situation that poses a
20 significant risk to the health and safety of personnel, including but
21 not limited to natural disasters, extreme weather, and other emergency
22 situations.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (b) "Deployment" shall mean the organized assignment of employees that
2 requires coordination beyond the scope of routine job duties.

3 3. When deployment occurs in coordination with one or more other enti-
4 ties, the office shall make reasonable efforts to ensure that employees
5 are provided with the information described in subdivision one of this
6 section, to the extent practicable.

7 4. Nothing in this section shall be construed to limit or delay the
8 ability of employees to perform routine job duties or respond to immi-
9 nent threats to life or property.

10 § 2. This act shall take effect immediately.